Agency Official for Privacy
WyIT.2006

Policy Owner	Department of Enterprise Services, Data Privacy
Policy Contact	Pat Potter, Deputy Chief Data Officer
Policy Approver	Wyoming Data Governance Committee (WDGC)
Effective Date	September 12, 2025
Next Review Date	April 1, 2027
Policy Version	2026-09.1

Scope:

This policy establishes the requirements for designating and empowering an Agency Official for Privacy (AOP) role within each Executive Branch agency to ensure appropriate governance, compliance, and risk management regarding data privacy operations. The AOP serves as the central privacy authority responsible for developing, implementing, and maintaining comprehensive privacy programs that protect sensitive data and information, regardless of format, structure, or formal asset designation and ensure compliance with applicable privacy laws and regulations.

This policy addresses the critical need for dedicated privacy leadership within state agencies to manage privacy risks, ensure regulatory compliance, and provide accountability for privacy-related decisions and incidents.

Authority

This policy is promulgated under the authority of Wyoming State Statute 9-2-2906 and its subsections, the Department of Enterprise Technology Services is required to adopt and enforce information technology standards, and promote efficient use of information technology throughout state government.

Specifically, this policy is further promulgated under the authority of the below listed Wyoming State Statute subsections.

- Implements and maintains an information technology governance program for state agencies (W.S 9-2-2906,(b), (ii));
- Establishes and enforces data security and privacy policies and standards for the state data infrastructure Establishes review criteria for the agencies information technology projects, procurements and purchases. (W.S 9-2-2906,(b), (iii)); and

Adopts information technology policies and standards and ensures agency compliance with those policies and standards (W.S. 9-2-2906,(b), (vi)).

Audience

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, third party vendors and temporary employees that use or store state data

Definitions

Key Definitions, Acronyms, and Terms

Policy Statements:

1. **AGENCY OFFICIAL FOR PRIVACY (AOP) DESIGNATION REQUIREMENTS**

1.1. The Agency Official for Privacy (AOP) shall:

1.2. Be an official serving in a central leadership position at the agency;

1.3. Have visibility into relevant agency operations; and

1.4. Is positioned highly enough within the agency to regularly engage with other agency leadership.

1.5. Classification must occur upon data creation, acquisition, or when existing data undergoes significant modification.

[1], [2]

1.2. Personnel identified by the agency as the AOP(s) shall have the necessary skills, knowledge, and expertise to lead and direct privacy programs.

1.2.1. The agency AOP(s) shall receive training consistent with the ability to carry out the privacy-related functions dictated by the needs of the State and agency as well as those described in law and policies.

[1], [3], [4]

1.3. The AOP shall have the necessary authority at the agency to lead and direct the agency's privacy program and carry out the privacy-related functions described in law and policies.

[1], [3], [5]

2. **RESPONSIBILITIES**

2.1. The Agency Head is ultimately responsible for ensuring privacy interests are protected, and sensitive data and information, regardless of format, structure, or formal asset designation is managed responsibly within the agency. To ensure agencies effectively carry out the privacy-related functions described in law and policy, the agency head shall designate an AOP with the following responsibilities:

2.1.1. The agency shall develop, implement, document, maintain, and oversee an agency-wide privacy program that supports state data governance

requirements and ensures protection of sensitive data and information, regardless of format, structure, or formal asset designation in accordance with applicable state and federal law.

2.1.2. The privacy program shall be led by an AOP responsible for ensuring compliance with applicable privacy requirements, developing and evaluating privacy policy, and managing privacy risks consistent with the agency's mission.
[1], [3], [5], [6], [7]

2.2. At the discretion of the AOP or agency head, other qualified agency personnel may perform specific privacy functions under AOP oversight, excluding final decision-making authority for privacy risk acceptance and incident response. The AOP retains ultimate accountability for all delegated privacy activities and must ensure proper training and supervision of delegated personnel.
[1],[2],[3]

2.3. The AOP shall ensure that the agency considers and addresses the privacy implications of all agency regulations and policies and shall lead the agency's evaluation of the privacy implications of legislative proposals.
[1], [3]

2.4. The AOP shall have a central role in overseeing, coordinating, and facilitating the agency's privacy compliance efforts. The AOP shall ensure that the agency complies with applicable privacy requirements in law, regulation, and policy.
[1], [3], [6], [7]

2.5. The AOP shall manage privacy risks throughout the complete lifecycle of sensitive data and information, regardless of format, structure, or formal asset designation, from collection through disposal. The AOP's review of privacy risks shall begin at the earliest planning and development stages of agency actions and policies that involve sensitive data and information, and continue throughout the lifecycle of the programs or information systems. Appropriately managing privacy risks may require agencies to take steps beyond those required in law, regulation, and policy.
[1], [3]

2.6. The AOP shall implement a procedure in their agency to report suspected privacy incidents and/or breaches for agency staff to the AOP.
[1], [3]

2.7. The AOP shall represent their agency on any subcommittee, committee, or council that governs privacy in the state.
[1], [3]

2.8. ETS shall provide training to the AOP on privacy concepts. This training shall not be construed as a substitute for any training required for agencies that have federal requirements. Agencies shall remain subject to federal and regulatory training requirements.
[1], [3]

3. **IMPLEMENTATION**

3.1. The head of each agency shall assess the extent, management, structure, and operation of the agency's privacy program and designate an official(s) to serve as the Agency Official for Privacy (AOP).
[1], [3]

3.2. Agencies shall conduct privacy risk assessments of existing information systems that process, store, or transmit sensitive information, regardless of format, structure, or formal asset designation, prioritizing systems based on risk level.
[1], [3]

Applicable State Policies, Federal, State or Industry Rules, Laws, and/or Regulations

1. National Institute of Standards and Technology (NIST) Privacy Framework
2. OMB Circular A-130
3. National Institute of Standards and Technology (NIST) SP 800-53, Rev 5
4. IAPP Privacy Program Management
5. Wyoming Statute .S. 9-21-101(a)(i)
6. EU-U.S. Data Privacy Framework (DPF)
7. ISO/IEC 27001
8. WyIT.2001-G1, Information Classification Guide
9. WyIT.2001-S1, Data Owner Standard
10. National Institute of Standards and Technology (NIST) SP 800-171, Rev 2
11. FBI Criminal Justice Information Services (CJIS) Security Policy
12. Health Insurance Privacy and Accountability Act (HIPAA), Security Rule
13. Family Educational Rights and Privacy Act (FERPA), 34 CFR Part 99
14. IRS Publication 1075
15. WyIT.2005, Information Residency and Transportation
16. WyIT.2001-S2, Data Steward Standard
17. WyIT.2001-S3, Data Custodian Standard
18. WyIT.2001-S4, Data Domain Standard
19. WyIT.2001-G1, Information Classification Guide
20. WyIT.2001-G2, Information Classification Procedures Guide
21. Wyoming Public Records Act (W.S.§ 16-4-201 through 16-4-205)
22. WyIT.2013, Electronic Data Destruction and Sanitization
23. WyIT.2003, Data Backup, Storage and Restoration
24. WyIT. 2005, Information Residency and Transportation
25. WyIT.2009, “Clean Desk” Confidential Information and Sensitive Materials Policy

26. WyIT.2014, Data Sharing Agreement Documentation Governance
27. WyIT.3015, Physical Media

Compliance & Exceptions:

Compliance

Employees who violate this policy may be subject to appropriate disciplinary action up to and including discharge as well as both civil and criminal penalties. Non-employees, including, without limitation, contractors, may be subject to termination of contractual agreements, denial of access to IT resources, and other actions as well as both civil and criminal penalties.

Exceptions

Requests for exceptions to this policy shall be reviewed by the Chief Information Security Officer (CISO) and the Chief Information Officer (CIO). Departments requesting exceptions shall provide such requests to the CIO in accordance with WyIT.3002 Policy Exception Request.

The request should specifically state the scope of the exception along with justification for granting the exception, the potential impact or risk attendant upon granting the exception, risk mitigation measures to be undertaken by the IT Department, initiatives, actions and a time-frame for achieving the minimum compliance level with the policies set forth herein. The CIO shall review such requests; confer with the requesting department.

Any exception to established policy shall be defined and tracked as a risk to the state and established mitigating controls monitored by the agency.

Review/Approval:

Date Issued/Review Date

This policy shall be reviewed at least annually and updated / reviewed / approved as defined in the Office of Chief Information Officer (OCIO) Policy lifecycle.

The review and update process shall be coordinated by Governance, Risk and Compliance (GRC), completed by the policy owner and approved through the OCIO policy review workflow.

Approval

This policy as signed by the appropriate officer (listed below) is considered approved and enforced, per Wyoming State Statutes (W.S 9-2-2906,(b), (iii)) and (W.S. 9-2-2906,(b), (vi)).

To obtain a signed copy of this document, contact Enterprise Technology Services Governance, Risk and Compliance (ets-ocio-grc@wyo.gov).

Jeffrey Clines Officer Name	Chief Information Officer Officer Title
_____ Officer's Signature	_____ Date

Revision History

The current version of this policy, as identified in the Revision History below, supersedes all previous documents listed below.

Version	Change	Author(s)	Date of Change
2026-09.1	ETS Director signature	GRC	September 2026
2025-09.2	WyIT 2006, Agency Official for Privacy (AOP), Updated Document Template	Pat Potter	September 2025
2024-06.1	WyIT 2006, Agency Official for Privacy (AOP), Originally Published	Wyoming Data Governance Committee (WDGC)	June 2024